

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased:

-----X
ANTHONY TWITTY,

SUMMONS

Plaintiff(s),

Plaintiff designates New
York County as the place of
trial.

-against-

THE CITY OF NEW YORK AND P.O. ZHAN CHEN,

The basis of venue is:
County of Occurrence

Defendant(s).
-----X

To the above named Defendant(s):

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York
March 4, 2014



ROBERT J. RENNA
Robert J. Renna, P.C.
Attorneys for Plaintiff(s)
ANTHONY TWITTY
26 Court Street Suite 303
Brooklyn, New York 11242
(718) 422-1003
Our File No. 13-202

TO:

THE CITY OF NEW YORK
100 Church Street
New York, NY 10007

P.O. ZHAN CHEN
c/o NEW YORK CITY POLICE DEPARTMENT 20th Precinct
120 West 82nd Street
New York, NY 10024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ANTHONY TWITTY,

Plaintiff(s),

-against-

THE CITY OF NEW YORK AND P.O. ZHAN CHEN,

Defendant(s).
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**VERIFIED
COMPLAINT**

Plaintiff, by his attorneys, **ROBERT J. RENNA, P.C.**, complaining of the Defendants,
respectfully alleges, upon information and belief:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at the time of the commencement of this action, plaintiff ANTHONY TWITTY, was and still is a resident of the County of Bronx, City and State of New York.
2. That the cause of action alleged herein arose in the County of New York, City and State of New York.
3. That at all times herein mentioned, defendant THE CITY OF NEW YORK was and is a municipal corporation, organized and existing under and by virtue of the laws of the State of New York.
4. That at all times herein mentioned, defendant THE CITY OF NEW YORK, maintained a police department which was under the control and direction of the defendant, THE CITY OF NEW YORK.
5. That at all times herein mentioned, defendant THE CITY OF NEW YORK operated, managed, maintained, and controlled the NEW YORK CITY POLICE DEPARTMENT.
6. That prior to the commencement of this action Plaintiff duly served and filed a Notice of Claim against the defendant and that more than thirty (30) days after such notice of claim and intention to sue was presented, and THE CITY OF NEW YORK has neglected and for refused to make adjustment or payment thereon, and this action is being commenced within one year and ninety days after the causes of action accrued herein.

7. That at all times herein mentioned, defendant P.O. ZHAN CHEN was and is employed by THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

8. That at all times herein mentioned, defendant P.O. ZHAN CHEN was acting within the course and scope of his employment with THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

9. That at all times herein mentioned, defendant P.O. ZHAN CHEN was acting under color of state law.

10. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules § 1602 with respect to joint and several liability.

AS AND FOR A SECOND CAUSE OF ACTION

11. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

12. That on January 17, 2013, at approximately 4:58 a.m., plaintiff ANTHONY TWITTY was a lawful pedestrian at West 60th Street and Columbus Avenue, in the County of New York, City and State of New York.

13. That on January 17, 2013, THE CITY OF NEW YORK by and through its agents, servants and/or employees, including P.O. ZHAN CHEN and other members of the NEW YORK CITY POLICE DEPARTMENT, assaulted and battered and used excessive and unreasonable force against plaintiff ANTHONY TWITTY.

14. That on January 17, 2013, THE CITY OF NEW YORK by and through its agents, servants and/or employees, including P.O. ZHAN CHEN and other members of the NEW YORK CITY POLICE DEPARTMENT, acting the court of their employment as police officers, and under color of law, and without legal cause of justification arrested the plaintiff, ANTHONY TWITTY, causing plaintiff to be handcuffed and imprisoned and causing plaintiff to sustain serious permanent injuries.

15. The defendant, THE CITY OF NEW YORK, their agents, servants, and/or

employees, while acting within the scope of their employment with defendant THE CITY OF NEW YORK, were negligent, reckless and careless in causing Plaintiff serious personal injuries.

16. By reason of the unprofessional and improper acts of defendant's agents, servants and/or employees, the plaintiff suffered mental shock, mental anguish and psychological trauma and was otherwise injured.

17. Plaintiff was arrested and incarcerated without cause or justification and without due process of law.

16. Plaintiff was forced to associate and mingle with persons accused of serious crimes, drug addicts and persons of low reputation, all against his will and without cause or justification, all of which cause plaintiff shame and humiliation. Plaintiff was caused to be sick, unwell and was unlawfully denied his liberty and freedom.

AS AND FOR A THIRD CAUSE OF ACTION

17. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

18. That by reason of the aforesaid assault and battery and use of excessive and unreasonable force, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, including his right under the Fourth Amendment to be free from unreasonable searches and seizures, and his rights pursuant to 42 USC § 1983 by those, including Matos, who under color of a statute or regulation of a state, caused plaintiff to be so deprived, thereby resulting in the aforementioned damages to plaintiff.

AS AND FOR A FOURTH CAUSE OF ACTION

19. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

20. That on January 17, 2013, in the County of Kings, City and State of New York, THE CITY OF NEW YORK, by and through its agents, servants and/or employees, including P.O. ZHAN CHEN and other members of the NEW YORK CITY POLICE DEPARTMENT, wrongfully and falsely arrested plaintiff and then caused plaintiff wrongfully to be detained and imprisoned.

21. That the aforesaid arrest, detention, and imprisonment was caused by THE CITY OF NEW YORK, its agents servants and/or employees, including P.O. ZHAN CHEN, without a warrant and without any reasonable or probable cause or belief that plaintiff was in fact guilty of any crime.

22. That defendant, THE CITY OF NEW YORK, its agents, servants and/or employees, while acting in their official capacity as agents, servants and/or employees of defendant, THE CITY OF NEW YORK, and without any just or cause or provocation and under the color of their authority, brought the plaintiff to the police precinct and maliciously and fraudulently caused charges to be netered in the Courts against the plaintiff; said defendants knew said charges were t otally false and untrue and said defendants made false and fraudulent charges and maliciously prosecuted the plaintiff to protect and conceal their own vicious criminal acrs upon the plaintiff as heretofore alleged.

23. The charges against the plaintiff, ANTHONY TWITTY were dismissed in Criminal Court, New York County.

24. That by reason of the false arrest, imprisonment and detention, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and business, and was caused to suffer much pain in both mind and body, and to sustain economic loss and other damages.

AS AND FOR A FIFTH CAUSE OF ACTION

25. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

26. That by reason of the aforesaid false arrest and imprisonment, plaintiff was deprived of his rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, including his right under the Fourth, Fifth and Fourteenth Amendment to be free from unreasonable searches and seizures and his rights pursuant to 42 USC § 1983 by those, including P.O. ZHAN CHEN, who under color of a statute or regulation of a state, caused plaintiff to be so deprived, thereby resulting in the aforementioned damages.

AS AND FOR A SIXTH CAUSE OF ACTION

27. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

28. That the aforesaid assault and battery and false arrest and imprisonment perpetrated by P.O. ZHAN CHEN and the other involved police officers were the result of the negligence of the THE CITY OF NEW YORK in its hiring, supervision, training, and retention of P.O. ZHAN CHEN and the other involved police officers.

AS AND FOR A SEVENTH CAUSE OF ACTION

29. Plaintiff repeats and realleges each and every allegation contained above as though fully set forth at length herein.

30. That the City's hiring, supervision, training, and retention of P.O. ZHAN CHEN arose to the level of deliberate indifference to the consequences of its actions, and indifference to plaintiff's rights, privileges and immunities secured by the Constitution of the United States of America and of the State of New York, and his rights pursuant to 42 USC § 1983.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on the aforementioned causes of action, for compensatory damages in the sum of TEN MILLION DOLLARS (\$10,000,000), and for punitive damages in an amount to be determined by the trier of fact, together with attorney's fees pursuant to 42 USC § 1988, and together with the costs and disbursements of this action.

Dated: Brooklyn, New York
March 4, 2014

Yours, etc.


Robert J. Renna, Esq.
ROBERT J. RENNA, P.C.
Attorneys for Plaintiff(s)
ANTHONY TWITTY
26 Court Street Suite 303
Brooklyn, New York 11242
(718) 422-1003

ATTORNEY'S VERIFICATION

ROBERT J. RENNA, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at ROBERT J. RENNA, P.C., attorneys of record for Plaintiff(s), Anthony Twitty. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

I make the foregoing affirmation because Plaintiff(s) is/are not presently in the county wherein I maintain my offices.

DATED: Brooklyn, New York
March 4, 2014



ROBERT J. RENNA

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SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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SUMMONS AND VERIFIED COMPLAINT

Robert J. Renna, P.C.
Attorneys for Plaintiff(s)
26 Court Street Suite 303
Brooklyn, New York 11242
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Signature (Rule 130-1.1-a)



ROBERT J. RENNA, ESQ.